

FEDERAL MARITIME COMMISSION

Docket No. 17-09

FIAT CHRYSLER AUTOMOBILES NV, FCA US LLC, AND FCA ITALY S.P.A.

v.

**WALLENIUS WILHELMSSEN LOGISTICS AS, WALLENIUS WILHELMSSEN
LOGISTICS AMERICAS LLC, EUKOR CAR CARRIERS INC.,
NIPPON YUSEN KABUSHIKI KAISHA, NYK LINE (NORTH AMERICA) INC.,
MITSUI O.S.K. LINES, LTD., MOL (AMERICA) INC.,
KAWASAKI KISEN KAISHA, LTD., "K" LINE AMERICA, INC.,
COMPAÑÍA SUD AMERICAN DE VAPORES S.A., AND HOEGH AUTOLINERS AS**

JOINT STATUS REPORT

Complainants Fiat Chrysler Automobiles NV, FCA US LLC, and FCA Italy S.p.A. (collectively, "complainants") and respondents Nippon Yusen Kabushiki Kaisha and NYK Line (North America) Inc. (collectively, "NYK"); EUKOR Car Carriers Inc. ("EUKOR"); Wallenius Wilhelmsen Logistics AS and Wallenius Wilhelmsen Logistics Americas LLC, (collectively, "WWL"); Compañía Sud Americana de Vapores S.A. ("CSAV"); Höegh Autoliners Holdings AS ("Höegh"), Mitsui O.S.K. Lines, Ltd. and MOL (America) Inc. (collectively, "MOL") and Kawasaki Kisen Kaisha, Ltd., and "K" Line America, Inc. (collectively, "'K' Line") (NYK, EUKOR, WWL, CSAV, Höegh, MOL and "K" Line are referred to collectively as "Respondents") respectfully submit the following joint status report as follows:

1. Pursuant to the May 16, 2018 order on respondents' consolidated motion for an extension of time, the parties were required to file a joint status report "within ten days of

the due date for exceptions [to the May 7, 2018 initial decision granting in part and denying in part respondents' motion to dismiss and supplemental motion to dismiss] with a proposed schedule for resolution of the proceeding.”

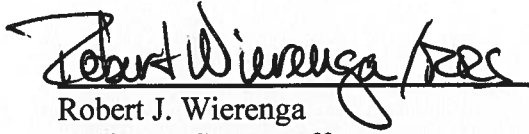
2. The due date for the filing of exceptions/appeal from the May 7, 2018 initial decision granting in part and denying in part respondents' motion to dismiss and supplemental motion to dismiss was extended to July 30, 2018, requiring that this joint status report be filed by no later than August 9, 2018.

3. In compliance thereof, complainants and respondents submit the following proposed schedule of proceedings as their joint status report:

- (a) Filing of answer, affirmative defenses, etc. to the complaint to be completed -- by no later than Tuesday, October 9, 2018;
- (b) Exchange of 46 C.F.R. § 502.141(b) initial disclosures to be completed -- by no later than Tuesday, October 23, 2018;
- (c) Service of written discovery demands (interrogatories, requests for production, and requests for admissions) to be completed -- by no later than Friday, November 2, 2018;
- (d) Depositions of all fact witnesses and all fact discovery to be completed -- by no later than Monday, March 4, 2019;
- (e) Complainants' expert witness report(s) to be served -- by no later than Friday, February 15, 2019;
- (f) Respondents' expert witness report(s) to be served -- by no later than Monday, April 2, 2019;
- (g) Depositions of expert witnesses to be completed -- by no later than Monday, May 13, 2019; and,
- (h) Any dispositive motions to be filed -- by no later than Friday, June 28, 2019.

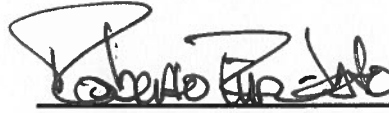
Respectfully submitted,

DATED: August 9, 2018



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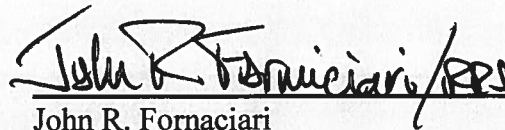


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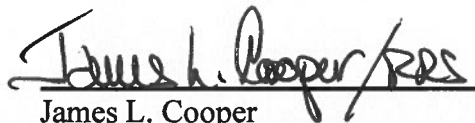
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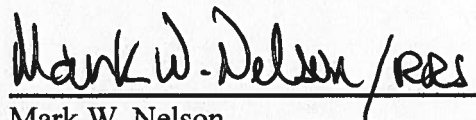
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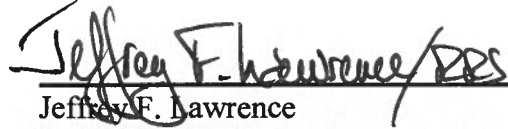
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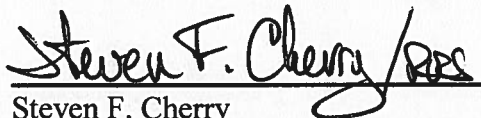
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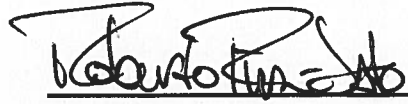
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CERTIFICATE OF SERVICE.

I hereby certify that, on August 9, 2018, true and correct copies of the foregoing joint status report was filed electronically with the Secretary of the Federal Maritime Commission, and electronic copies thereof were sent to all lead/liaison counsel for the parties identified in Docket No. 17-09.

DATED: August 9, 2018


Roberto A. Rivera-Soto